

****07.12.2023****

****Sanction for GDPR Violation****

The National Supervisory Authority has completed an investigation in November of the current year regarding the operator Hora Credit IFN SA, during which it found violations of the provisions of Article 32, Article 33 paragraph (1), Article 15 paragraph (1), and Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679.

As such, the operator was sanctioned with fines totaling 119,296.8 lei, equivalent to 24,000 EURO, as follows:

- A fine of 99,414 lei, equivalent to 20,000 euro for violating the provisions of Article 32 of Regulation (EU) 2016/679;
- A fine of 9,941.4 lei, equivalent to 2,000 euro for violating the provisions of Article 33 paragraph (1) of Regulation (EU) 2016/679;
- A fine of 9,941.4 lei, equivalent to 2,000 euro for violating the provisions of Article 15 paragraph (1) and Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679.

The sanctions were applied following a complaint stating that the operator Hora Credit IFN SA sent the complainant documents containing the personal data of another person, a client of the operator, to the complainant's email address.

Although the complainant reported this error to the operator, Hora Credit IFN SA did not rectify this issue, continuing to send messages to the complainant's email address.

Following the investigation, it was found that Hora Credit IFN SA did not adopt sufficient personal data security measures, according to Article 32 of Regulation (EU) 2016/679, to prevent the unauthorized and accessible disclosure of the complainant's personal data to third parties.

It was also found that the operator did not notify the Supervisory Authority of the security incident that was brought to its attention, according to Article 33 paragraph (1) of Regulation (EU) 2016/679, within 72 hours from the date it became aware of it.

At the same time, Hora Credit IFN SA did not provide evidence regarding the communication of a response to the complainant's request for information regarding the source of the collection of their personal data, in accordance with Article 15 paragraph (1) of Regulation (EU) 2016/679 and within the deadlines regulated by Article 12 paragraphs (3) and (4) of the same Regulation.

Simultaneously, the operator was also subjected to the following corrective measures:

- The corrective measure to ensure compliance with Regulation (EU) 2016/679 of the personal data processing operations for the purpose of concluding and executing loan contracts, in order to respect professional secrecy and the confidentiality of its clients' personal data, particularly in the case of transmitting documents and messages containing personal data remotely, by implementing appropriate and effective security measures, both technically, including in terms of the certain validation of collected email addresses, password protection of transmitted documents, storage and monitoring of logs from its database, and organizationally, by training the individuals processing data under its authority to identify and immediately limit risks that may affect the data subjects, as well as for the proper management of requests and complaints received;
- The corrective measure to ensure compliance with Regulation (EU) 2016/679 of the personal data processing operations, by contacting the complainant to request them to take measures to delete or destroy, as applicable, the personal information they accessed following the receipt of messages and notifications concerning the client of Hora Credit IFN SA;
- The corrective measure to ensure compliance with Regulation (EU) 2016/679 of the personal data processing operations for the purpose of implementing an adequate internal policy for identifying risks, analyzing them, and notifying ANSPDCP in the event of a security breach, under the conditions provided by Article 33 paragraph (1) of Regulation (EU) 2016/679, including in terms of appropriate training for individuals processing data under the authority or on behalf of Hora Credit IFN SA (employees, collaborators, authorized persons, etc.);
- The corrective measure to inform its client about the breach of the security of their data by transmitting it to the complainant erroneously;

- The corrective measure to communicate to the complainant a response to their request in accordance with Article 15 paragraph (1) of Regulation (EU) 2016/679.

****Legal and Communication Department****

****A.N.S.P.D.C.P.****